

JUDGMENT SHEET
PESHAWAR HIGH COURT, PESHAWAR
(JUDICIAL DEPARTMENT)

W.P No. 3663-P/2024

Aniqa Waheed and others.
VS
Govt of Pakistan through Secretary Communications,
Pak Secretariat,
Islamabad and others.

For Appellant (s):	Mr. Sultan Muhammad Khan, advocate
For Respondent(s)	Mr. Akbar Yousaf Khalil, DAG with Ali Hussain, Superintendent, Directorate General, PPO, Islamabad, Dr. Rahat Ali, Assistant Supdt: P.O, Peshawar, Tahir Hussain, A.D, Nadeem Khan A.S, Aamir Jan, A.S, GPO Peshawar.
Date of hearing:	21.05.2026.

JUDGEMENT

IJAZ ANWAR, J. By this single judgement, we intend to

decide the instant as well as the connected **Writ Petitions**

No. 1743-P/2025 “Atta Ullah and others Vs Government

of Pakistan through Secretary Communication Block D

Pak Secretariat Islamabad, Capital City and others, No.

1757-P/2025 “Waleed Tahir and others Vs Govt of

Pakistan Prime Minister Office, Constitution Avenue, Red

Zone, Islamabad and others” and No. 1920-P/2025

“Abubakar and others Vs Government of Pakistan

through Secretary, Communication Block D Pak Secretariat, Islamabad Capital Territory and others”, No. 3606-P/2023 “Syed Ihsan Ali Shah and another Vs Director General Pakistan Post, G-8/4, Islamabad and others”, No. 3926-P/2023 “Mubashir Nazar Vs Director General Pakistan Post, G-8/4, Islamabad and others”, No. 4607-P/2023 “Sudais Ahmad and another Vs Director General Pakistan Post, G-8/4, Islamabad and others”, and No. 2707-P/2024 “Sudais Ahmad Vs Federation of Pakistan through Secretary Ministry of Communication, Pakistan Post Office Department, Pak Secretariat, Islamabad and others” as all the petitions have been filed under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 involving identical issue. The following prayer has been made in this writ petition.

“It is therefore, most respectfully prayed that on acceptance of this writ petition this Honorable Court may be pleased to:

- I. Declare that the appointment of the petitioners vide

appointment letters annexed to this writ petition have been lawfully issued.

- II. Declare that the petitioners being eligible for the posts they applied for and having undergone the long drawn, lawful recruitment process have been appointed in a lawful manner.
- III. Restrain the respondents from taking any adverse action against the present petitioners.
- IV. Set aside the operation of the letter dated 10.07.2024 and any other process initiated before or after issuance of the said letter related to the recruitment process.
- V. Declare that the recruitment process carried out by the respondent department was in accordance with law, rules and fulfilled all codal formalities.
- VI. Any other relief deemed appropriate in the circumstances of the case and not specifically prayed for may also be granted.”

2. In response to the advertisement published by the respondents in the newspapers regarding appointments on various posts, petitioners applied for same and participated in the recruitment process. In this writ petition and W.Ps No. 1743-P, 1757-P and 1920-P of 2025, petitioners were issued

appointment letters; they were performing their duties and drawing their salaries. They are aggrieved of the letter dated 10.07.2024 issued by the respondent Department whereby recommendations were made for declaring the appointment process as null and void. In W.Ps No. 3606-P, 3926-P, 4607-P of 2023 and 2707-P of 2024, the grievance of the petitioners is that though they were highly qualified, however, they were ignored and the private respondents were appointed on the subject posts.

3. Comments were called from the respondents which were accordingly submitted whereby they have prayed for dismissal of the writ petitions.

4. Counsel for petitioners/appointees have argued that pursuant to the selection process, petitioners/appointees duly applied for the respective posts, gone through the rigors of the appointment process and ultimately, after finding their place in the merit, were issued formal orders of appointment on 18.5.2023. It was contended that they assumed charge of

their post and started performing their duties. It is further contended that they have even completed their probationary period. The main objection is on the recommendation of the respondents for their removal which according to the learned counsel for petitioners/appointees is violation of the Civil Servants (E&D) Rules, 2020. Besides, the respondents are required to allow proper opportunity of hearing to each of the appointee instead of asking for their outright removal.

5. As against this, learned counsel representing the respondents/candidates argued that the whole appointment process was manipulated in order to accommodate the appointees. It was argued that the appointment process was dubious and that they were deprived of their genuine right of appointment.

6. The learned DAG has not supported the case of petitioners/appointees and argued that after an audit report, an Inquiry Committee was constituted and pursuant thereto,

recommendations were made for annulment of the appointment process and also recommended action against the persons involved in such shame appointment process. It is further argued that since this issue was taken up on the direction of the Prime Minister, as such, a Committee was subsequently constituted and recently, it has submitted its report for scrapping the whole process of appointment.

7. Arguments of learned counsel for the parties heard and record perused.

8. Perusal of record reveals that the respondent-Department had invited applications from the eligible candidates for different posts including the post of Postal Clerk, Sorter, Postman and Mail Peon/Runner. Petitioners applied and appeared in the selection process and remained successful. Thus on the recommendation of the Departmental Selection Committee, they were issued offer of appointment. They duly assumed the charge of their posts and till date are performing their duties. We have also been informed that

they have even completed their probationary period successfully. Due to certain complaint, a random inquiry was conducted and certain recommendations were made against the persons who are involved in the selection process. Besides, it was recommended that action be taken against the appointing Authority as well. It has also been brought on record that the Federal Government constituted an Inquiry Committee with the following terms of reference:-

- “i. Rental properties of Pakistan Post, examining the process undertaken to rent the properties and determining the necessity of procurement and transparency.**
- ii. The recruitments made in the department during the past 10 years, reviewing both the hiring need and process.”**

9. While going through the findings of the inquiry Committee, it was observed that “the recruitment to the extent of Postmen, Sorters, Porters and Mail Runners may be justified. However, as also admitted by the ADG PPOD, the recruitment against the remaining 1544 posts may have been avoided.” This high level Committee has made certain

recommendations including action/proceedings against the officers/officials involved in the selection process while regarding the appointees, there were certain positive recommendations as under:

- i. The services of candidates who were not eligible at the time of submission of applications (i.e. they were overage, lacked relevant educational qualification, hired over and above the available vacancies, were appointed to posts other than they had applied for or appointed in violation of prescribed quotas) may be terminated after following due process of law.**
- ii. The remaining newly recruited candidates may be made to undergo specially designed tests to assess the adequacy of their skills and competence. The candidates whose performance reflects significant variance from the results and marks obtained during the recruitment process may be proceeded against subject to due process of law. Ministry of Communication must ensure the quality, transparency and integrity of this process.”**

10. In violation of the recommendation of the high level Committee, the respondents vide letter No. ER.18-6/2023 dated 10.07.2024 directed as under:

“Recommendation

1. As the whole recruitment process (2022) in KP Circle was compromised, therefore, it is recommended that this recruitment be declared null and void.
2. Consequently, fresh examination of applicants, whose applications were received before the deadline i.e 27.8.2022 as per NOC issued on 16.11.2022 be conducted. This re-recruitment process should strictly be according to departmental rules in conformity with the policies of Establishment Division. This idea was also given in Ministry of Communications recommendations reproduced above under title “Communications of Inquiry Committee of MoC”. The newly prepared merit list will allow justice to prevail for deserving and qualified candidates.”

11. Interestingly, in the connected writ petitions filed by the respondents, they have supported the selection process to be in accordance with law and that appointments were made on merit.

12. In the Civil Servants (E&D) Rules, 2020, “misconduct” is defined under Rule-2 sub clause “K” as follows:

“misconduct” means conduct prejudicial to good order or service discipline or contrary to Government Servants (Conduct) Rules, 1964 or unbecoming of an officer and, a gentlemen and includes any act on the part of a civil servant to assert or attempt to assert political or other exterior influence directly or indirectly to bear on the Government or any Government officer in respect of any matter relating to the appointment, promotion, transfer, punishment, retirement or other conditions of service of a civil servant, or having entered into plea bargain under any law for the time being in force and has returned the assets or gains acquired through corruption or corrupt practices, voluntarily.”

In terms of the definition of “misconduct” getting appointment by asserting exterior influence has been termed as misconduct within the meaning of law for which departmental proceedings can be initiated in terms of Civil Servants (Efficiency & Discipline) Rules, 2020. Scrapping the whole appointment process without providing any right of hearing to the appointees, besides considering their eligibility

against the relevant posts would be in fact violation of Article 4 and 10-A of the Constitution of Islamic Republic of Pakistan, 1973. Having been appointed against the posts in question, petitioners have the protection of law and are to be treated in accordance with law. Besides, for determination of their civil rights and obligations, they shall be entitled to fair trial and due process of law.

13. Though there are views of the superior courts that instead of taking action against the petty employees, action should be taken against the persons/appointing Authority who have/has violated the law or rules in making appointments. In any case, it is yet to be determined as to whether there is any illegality or irregularity in the process of selection or the petitioners have been appointed in accordance with law because so far none of the employees/employer has been put to departmental proceedings nor their individual case has been scrutinized. Reference can be made to the following cases.

Arab VS Province of Sindh

2026 PLC (C.S.) 336

Supreme Court of Pakistan

Holding: Employees cannot be made "scapegoats" for the failures of the department to follow codal formalities.

"It is often seen that the poor and innocent employees appointed in low-tier, basic pay scales are made the scapegoat and victim of severe departmental actions and highhandedness while the actual wrongdoers and malefactors are always exonerated."

"whether the appointment letters could be recalled without any show cause notice or without providing any opportunity of being heard; and who was actually responsible of issuing the appointment letters (if the codal formalities were not fulfilled) and what departmental action was proposed or taken against the responsible persons who misled and defrauded the petitioners"

Government of Balochistan VS Muhammad Yasir

2025 SCMR 367

Supreme Court of Pakistan

Holding: Protection against cancellation of appointment due to administrative "technical errors"

"--in all fairness, in the entire scenario, the respondent cannot be blamed or reproached for committing any illegality or securing the job through unfair means, fraud, or misrepresentation... his appointment order was withdrawn/ cancelled on 27.09.2023 without any show cause notice or any opportunity to be heard. This action was in sheer contravention of **Article 10-A of the Constitution...** and lacked due process of law." "The department's astute approach, in the present state of affairs, should be to first set its own house in order rather than opting for a drastic action of withdrawing a job opportunity from the respondent who, in this case, had become a scapegoat and was condemned unheard due to the weaknesses and faults of the Human Resources team..."

Government of Balochistan VS Ghulam Rasool

[2024 SCMR 1155](#)

Supreme Court of Pakistan

Holding: A job seeker is not responsible for verifying the internal authority of the recruiting department.

"It is not in his dominion to conduct due diligence, before making a formal application, on whether the recruitment process by means of advertisement in the newspaper for vacant situations is issued by the competent authority or not."

"the drastic action of withdrawing appointments letters and terminating service was carried out without issuing any show cause notice and without affording any opportunity of hearing to the terminated employees. The philosophy of natural justice is meant for affording a right of audience before any detrimental action is taken... if the process was allegedly initiated wrongly, then why were the concerned government departments under a deep slumber or ignorance?"

Zafaran Khan VS Nizam Ullah

[2023 PLD 371](#)

Supreme Court of Pakistan

Holding: Condoning bona fide procedural lapses

"Given the scenario, it cannot be held that the appellants obtained their appointments through the backdoor ... each appellant is a bread earner for his family" "appointment to any post under the government can only be made after a proper advertisement ... violate the guarantee enshrined under Articles 18 and 27 of the Constitution"

Abdul Salim VS Government of N.-W.F.P.

[2008 SCMR 871](#)

Supreme Court of Pakistan

Holding: Vague termination orders and institutional perpetuity

"For the irregularities committed by department itself regarding appointment of candidate, the appointees could not be condemned subsequently with the change of heads in department or on the upper level.

Government being institution in perpetuity, its orders could not be reversed simply because the heads had changed. Such act of departmental authorities was unjustified when the candidate was otherwise fully qualified to hold the job." "In the order of removal from service it was only mentioned that the appointment of the civil servant was found illegal, ab initio void and against the prescribed rules but no details in that regard were mentioned therein. Absence of such reasons by itself was sufficient to dub the removal as mala fide."

Province of Punjab VS Zulfiqar Ali

[2006 SCMR 678](#)

Supreme Court of Pakistan

Holding: Accountability of the Appointing Authority

"in such-like situation instead of taking action against an appointee it is appropriate if an action is taken against the Appointing Authority who apparently committed a misconduct by making such appointment" "he should have blamed himself and should have decided whether he is capable to remain in service or otherwise morally and legally instead of claiming premium of his own"

Muhammad Zahid Iqbal VS D.E.O., Mardan

[2006 SCMR 285](#)

Supreme Court of Pakistan

Holding: Limitation of the doctrine based on basic eligibility

"Such principle, in nutshell and consistently declared by this Court is that once the appointees are qualified to be appointed, their services cannot subsequently be terminated on the basis of lapses and irregularities committed by the department itself. Such laxities and irregularities committed by the Government can be ignored by the Courts only when the appointees lacked the basic eligibilities, otherwise not." "the petitioners, we are afraid, cannot draw any benefit therefrom because at the time of their initial appointments, they lacked basic

qualifications, requirements and eligibilities. They were appointed as PTC, CT, PET and TT Teachers in the department but they lacked the pre-qualifications and training courses, CT certificates and junior diploma in physical education as pre-requisites for the posts aforesaid."

Province of Punjab VS Zulfiqar Ali

[2005 PLC \(C.S.\) 1165](#)

Supreme Court of Pakistan

Holding: Termination for "illegal appointment" cannot be done under Discipline Rules; action must be taken against the Authority.

"these rules contemplate an action against an employee who is guilty for the breach of good service order, indiscipline, misconduct etc. but it does not contain any provision on the basis of which appointment of an employee can be cancelled on the ground that it has been made illegally. In other words, in such-like situation instead of taking action against an appointee it is appropriate if an action is taken against the Appointing Authority who apparently committed a misconduct by making such appointment"

Muhammad Shoaib VS Government of N.-W.F.P.

[2005 SCMR 85](#)

Supreme Court of Pakistan

Holding: Majority View: Government as a Perpetual Entity

"a Government, as such, is a perpetual entity. The heads might change but the Government does not. The action once taken by one administration is to be followed by the changed administration, more particularly when it involves the employment of the people." "Action requires to be taken against those who are guilty of making illegal appointments. The funny side of the picture is that the same authority commits illegality itself not once but twice; once at the time of appointment and second at the time of removing them from service. The authority cannot be

allowed to punish others for the illegal acts of their own."

Muhammad Akhtar Shirani VS Punjab Text Book Board

[2004 SCMR 1077](#)

Supreme Court of Pakistan

Holding: Protection of low-level employees

"for such reason beneficiary cannot be blamed alone because primarily the authority who had actually mis-exercised his powers, for the reasons known to it, is bound to be held responsible for the same, instead of penalizing the petty employees like Chowkidar, Naib-Qasid, junior clerks"

Collector of Customs and Central Excise, Peshawar VS Abdul Waheed

[2004 SCMR 303](#)

Supreme Court of Pakistan

Holding: Hardship and duration of service

"appointees/respondents could be blamed for what was to be performed and done by the Competent Authority before having verified the qualification and suitability and observance of the due process" "The petitioners/authorities competent should be held responsible and liable for the said lapse on their part. It could not be forgotten the persons/respondents who have put in more than ten years of their service and thereby have lost all their chances to get fresh appointment elsewhere as they stood disqualified being overage and in case they are to be removed now the same would amount to hitting them hard creating problems for the Society at large considering each of the respondent being a bread earner for his family"

Arshad Jamal VS N.-W.F.P. Forest Development Corporation

[2004 SCMR 468](#)

Supreme Court of Pakistan

Holding: Termination for "illegal appointment" requires a show-cause notice and hearing.

"The question arises whether the appellant can maintain Constitutional petition even if

no statutory rules had been framed... where a removal order of such an employee of corporation even in the absence of statutory rules is made on particular grounds which are in the nature of charges, the employee has a vested right of hearing before any order adverse to his interest was passed by virtue of principle of **audi alteram partem** which was the least requirement."

"since the Authority passed an order influenced mainly by the fact that the appointment of the appellant was illegal, ab initio, void and against the rules it was necessary that before passing order of termination or removal, appellant should have been issued show-cause notice and an opportunity of hearing granted and thereafter well-considered order should have been passed."

14. Keeping in view the above principles set by the august Supreme Court of Pakistan when there are allegations of irregularities in the process of selection, we deem it appropriate to strike down the impugned letters with further direction to the respondents to treat the petitioners in accordance with law and to provide them proper opportunity of hearing and fair trial as provided in Article 4 of the Constitution of Islamic Republic of Pakistan, 1973 read with the Civil Servants (Efficiency & Discipline) Rules, 2010.

15. With the above observation, the instant writ petition along with writ petitions **No. 1743-P, 1757-P and 1920-P of 2025** are allowed while writ petitions **No. 3606-P, 3926-P, 4607-P of 2023 and 2707-P of 2024** are disposed of.

Announced

Dated. 21.05.2026

**Senior
Puisne Judge**

Judge

(DB) Hon'ble Mr. Justice Ijaz Anwar and Hon'ble Ms. Justice Farah Jamshed

Amir